

Court No. - 40

Case :- WRIT - C No. - 6811 of 2022

Petitioner :- The Executive Engineer

Respondent :- Har Narayan And Another

Counsel for Petitioner :- Arti Raje

Hon'ble Vivek Kumar Birla,J.

Hon'ble Vikas Budhwar,J.

Heard Smt. Arti Raje, learned counsel for the petitioner.

In view of the order, which is being passed today, there is no need to issue notice to the Respondent nos. 1 and 2.

The petitioner herein has invoked the jurisdiction under Article 226 of the Constitution of India seeking following reliefs:

"a) Issue a writ, order or direction in the nature of certiorari quashing the impugned order dated 19.03.2021 passed by the respondent no.2 in Claim Petition No.13/2020 (Shri Har Narayan Vs. Dakshinanchal Vidyut Vitran Nigam Ltd., through its Executive Engineer, Vidyut Nagriya Vitran, Khan- Pratham, Jhansi) (Annexure No.1 to this writ petition).

b). Issue a suitable writ, order or direction which this Hon'ble Court may deem fit and proper under the facts and circumstances of the case.

c) Award cost of the instant Writ Petition in favour of the Petitioner."

Perusal of the relief as sought by the petitioner reveals that the petitioner is challenging the order dated 19.3.2021 passed by Respondent no.2, whereby the complaint so preferred by the Respondent no.1 before Respondent no.2 being Complaint Case No. 13 of 2020, *Sri Har Narayan vs. Dakshin Vidyut Vitaran Nigam Limited* has been allowed with a direction to the petitioner herein to treat 20.8.1997 as the date of permanent disconnection and complete formalities in respect to issuance of a final bill.

As per the pleadings set forth in the Writ Petition, Respondent no.1 has alleged that his father being Sri Dasi Ram, resident of 128/16, Saiyar Gate Bahar, Jhansi had applied for and was granted a commercial electricity connection bearing no. 2156/040629. Respondent no.1 in the proceeding so instituted by him before Respondent no.2 in Complaint Case no. 13 of 2020 had pleaded that permanent disconnection of the above noted electricity connection was applied and on 20.8.1987, the

officers/ employees of the petitioner, permanently disconnected the connection and uprooted the meter, however, no receiving, whatsoever, as required under law was extended to them. It has been further alleged by Respondent no.1 that on 27.11.2012, an affidavit was also submitted in prescribed proforma by Mewa Lal son of Late Ram Sewak and Laxmi Narayan son of Late Babu Ram with respect to permanent disconnection so conducted on 20.8.1997. As neither any receiving nor the permanent disconnection order was issued to Respondent no.1, so Respondent no.1 pursued the matter and also represented the matter before the petitioner on 23.8.2016.

Being aggrieved against non-issuance of final bill pursuant to the permanent disconnection, which is said to have been done on 20.8.1987, the Respondent no.1 preferred Complaint Case no. 13 of 2020 before Respondent no.2, *Sri Har Narayan vs. Dakshinanchal Vidyut Vitaran Nigam Limited*, an incomplete copy of the complaint so lodged by Respondent no.1 before Respondent no.2 has been annexed as Annexure-2 at page-16 of the paper-book. Records of the present writ petition reveals that notices were issued to the petitioners, however, they did not submit any reply or objection to the complaint so preferred by Respondent no.1, and ultimately, by virtue of the order impugned, now the complaint has been allowed in part and the petitioner herein has been directed to treat 20.8.1997 as the date of permanent disconnection and to issue a final bill on the basis of the same.

Challenging the order dated 19.3.2021 passed by Respondent no.2 in the Complaint Case No.13 of 2020, *Sri Har Narayan Vs. Dakshinanchal Vidyut Vitaran Nigam Limited*, petitioner is before this Court.

Smt. Arti Raje, learned counsel for the petitioner has assailed the order passed by Respondent no.2 in Complaint Case No.13 of 2020, on the ground that the order is perverse and contrary to material on record, as according to the learned counsel for the petitioner, meter reading was noted by the petitioner on 16.11.2005, which depicted that 13310 electricity unit was consumed by Respondent no.1. Reference has also been drawn to Annexure-3, page-20, which happens to be the electricity bill dated 31.5.2015, as well as the bill register.

According to learned counsel for the petitioner, there was ample evidence available on record before Respondent no.2, which could clearly show that permanent disconnection had not been done on 20.8.1997, as claimed by Respondent no.1 and thus the direction so sought to be issued by Respondent no.2 treating 20.8.1997, the date of permanent disconnection and preparation

of final bill is extraneous to the record.

Before proceeding further, the provisions contained under the U.P. Electricity Supply Code, 2005 (hereinafter referred to as the Code) are quoted hereinunder: -

"4.20 Security Deposit

(a) [A security deposit to cover the estimated power consumption for two months shall be made by all consumer / applicant.

(b) The estimated consumption and security deposit amount for different categories of new consumers shall be determined by the Licensee with the approval of the Commission.

(c) In case of enhancement of load, only additional security to cover the additional load (Load after enhancement minus existing load) shall need to be deposited.

(d) 3 (3) Deleted

(e) The Licensee may give notice to any consumer for deposit of additional security deposit if:

(i) The security deposit falls short of covering the estimated power consumption bill for 2 months based on his average monthly consumption for the preceding financial year.

(ii) In case of a new connection, additional security shall be demanded only after completion of one full financial year.

(iii) Only when the required additional security deposit payable by the consumer exceeds 10% of the existing security deposit, a demand for additional security deposit, shall be made.

(iv) The security deposit is reduced due to adjustment of outstanding dues.

(v) Security deposit has become invalid or insufficient due to any other reason.

(f) The consumer shall deposit the additional security within 30 days after the service of the notice. If a person fails to give such security, the Licensee may discontinue supply of electricity for period during which failure continues. However, a maximum of three instalments, if considered prudent by the licensee, may be permitted.

(g) If the existing security deposit is found to be in excess of

more than 20% of the required security deposit, refund of the excess amount shall be made by adjustment in the ensuing bills within three billing cycles to the consumer.

(h) The security deposit shall be returned to consumer, upon termination of the agreement & finalization of permanent disconnection, and after adjustment of all dues, within 30 days. However, if the delay in payment exceeds 90 days, interest at bank rates of Reserve Bank of India, shall be payable to the consumer. In this regard it shall be the responsibility of the licensee to keep a watch on the bank rate from time to time.

(i) The Licensee shall pay interest on security deposit to the consumers at bank rate as on 1st April of applicable financial year by way of credit in the bill of the consumer in the months of April, or May or June as per the applicable billing cycle. However, no interest shall be payable if the deposit is not made by way of cash, cheque or bank draft. The interest rates are subject to change as per the tariff orders of Commission from time to time.]

(j) The amount of security deposit shall be accepted in parts according to the phasing agreed for release of load in case of "Phased Contract Demand". The subsequent additional security amount shall be deposited 30 days prior to the release of additional load.

(k) The Licensee shall energise no connection until the requisite security amount has been deposited by the applicant / consumer.

(l) A distribution licensee shall not be entitled to require security in pursuance of this section, if the person requiring the supply is prepared to take the supply through a pre-payment meter, as and when distribution licensee provides a choice to consumer to opt for supply through pre-payment meter.

4.38 Permanent Disconnection

(i) The supply shall be disconnected permanently in following cases:

(a) With the termination of the agreement.

(b) If the cause for which the supply was temporarily disconnected is not removed within six months period.

(c) On request of consumer as described under section 4.14(g).

(ii) If the dues are not paid by the consumers the surcharge

payable by the consumer on dues shall be levied upto the period of issue of section-5 notice, or for maximum eight months only.

(iii) The security amount shall be adjusted first and after adjusting the security amount the net arrear shall be calculated on which surcharge shall be payable by the consumer."

We have heard Sri Arti Raje, learned counsel for the petitioner and perused the record.

Undisputedly, the procedure and the manner, according to which permanent disconnection is to be done, is clearly set out under the provisions contained under clause 4.38 of the Code.

Here in the present case, as per the case set up by Respondent no.1, application was preferred for affecting permanent disconnection and on 20.8.1997, the electricity connection was disconnected and the meter was also uprooted. It has also come on record in the order under challenge by Respondent no.2 that a paper bearing no. 4Ka/2 was submitted by Respondent no.1 before Respondent no.2 showing the fact that permanent disconnection was done on 20.8.1997 and it bore signature of one Sri Nanhe Singh. Even otherwise, the order under challenge also recites that various applications were prepared including affidavit showing the fact that permanent disconnection was affected on 20.8.1997 and the meter was also removed, but neither the permanent disconnection receipt, nor the final bill after permanent disconnection was issued or handed over by the petitioner to Respondent no.1. Even, otherwise clause 4.38 provides for the cases pertaining to permanent disconnection and further clause 4.20 (h) also deals with the contingency attracting interest as well as adjustment of all the dues within 30 days upon termination of the agreement and finalization of the permanent disconnection and after delay in payment, which exceeds 90 days, interest as specified by Reserve Bank of India is liable to be paid.

Admittedly, as per the order under challenge, opportunity was accorded to the petitioner to submit his reply to the complaint and the petitioner chose not to file their objection, however, contested the case orally without substantiating their stand.

Even before this Court barring reference to the electricity bill dated 31.5.2015, previous reading, which is '0', current reading '0', difference '0' and the amount of Rs.184766/- has been shown to be arrears. Apart from the same, a bill register has also been appended, which also does not support the case of the petitioner.

Pure finding of fact has been recorded by Respondent no.1, which cannot be the subject matter of judicial review in the present case, particularly when there is nothing on record before this Court so as to substantiate the fact that permanent disconnection has not been done on 20.8.1997. This Court under Article 226 of the Constitution of India cannot sit in appeal over the orders passed by Respondent no.1, particularly, in view of the fact that there is nothing on record to hold otherwise.

Even otherwise, present writ petition does not warrant any interference in the present proceedings, as pure finding of fact have been recorded, which have not been seriously disputed in the present proceedings and thus there is no occasion for the Court to take a different view from the view, which has been taken from Respondent no.2 in the order under challenge. Moreover, present case is also not a fit case, when jurisdiction under Article 226 of Constitution is to be exercised.

Resultantly, the present writ petition is **dismissed**.

No order as to cost.

Order Date :- 21.4.2022
N.S.Rathour